

**CHAPTER lxviii.**

An Act to confer further powers upon the Herne Bay Gas and Coke Company Limited and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS the Herne Bay Gas and Coke Company Limited (in this Act called "the Company") are a company incorporated under the Acts repealed by the Companies (Consolidation) Act 1908 for the purposes (amongst other things) of making and vending in the parishes and districts of Herne Bay and Herne gas and coke and other matters arising from the making of gas and for lighting the said parishes and districts with gas or other illuminating material:

And whereas by the Herne Bay Gas Order 1899 (confirmed by the Gas and Water Orders Confirmation Act 1899) the Company were authorised to maintain and continue gasworks upon the lands described in Schedule A to that Order and powers were conferred upon the Company in relation to the supply of gas within the urban district of Herne Bay and the parish of Herne in the county of Kent:

And whereas by the Herne Bay Gas Order 1903 (confirmed by the Gas Orders Confirmation (No. 2) Act 1903) the limits of supply of the Company were extended so as to include the parish of Reculver in the said county and further powers were conferred upon the Company in relation to their undertaking in regard to which further provision has also been made by the Gas Companies (Standard Burner) (No. 2) Act 1910:

And whereas the following is a statement of the capital of the Company authorised by the Order of 1899 and by the Order of 1903 and of the borrowing powers of the Company authorised

A.D. 1912. by those Orders and of the amounts raised and borrowed by the Company :—

1. Date of Order.	2. Description of Capital.	3. Amount authorised.	4. Maximum Dividend on Share Capital.	5. Amount raised.	6. Amount not raised.
1899	Original ordinary capital.	£ 16,000	10 per centum per annum.	£ 16,000	—
1899	Additional ordinary capital.	20,000	7 per centum per annum.	19,160	—
	Premiums - -	—	—	840	—
1903	New ordinary capital or	33,000	7 per centum per annum.	—	33,000
	New preference capital.		5 per centum per annum.		
1899 and 1903	Loan capital -	23,000	—	9,500	13,500

And whereas the demand for gas within the Company's limits of supply has increased and is increasing and it is expedient to empower them to construct new gasworks upon the lands specified in the First Schedule to this Act and to raise further capital for the purposes of their undertaking and to confer upon them the further powers contained in this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Herne Bay Gas Act 1912 and the Herne Bay Gas Order 1899 the Herne Bay Gas Order 1903 the Gas Companies (Standard Burner) (No. 2) Act 1910 and this Act may be cited together as the Herne Bay Gas Acts 1899 to 1912.

Incorporation
of Acts.

2.—(1) The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with

the provisions of this Act are hereby incorporated with this Act A.D. 1912.
(namely):—

(a) The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement);

(b) The Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive); and

(c) The Gasworks Clauses Act 1871.

(2) In their application to the Company the provisions of the Gasworks Clauses Act 1847 shall be modified as follows:—

(a) Section 13 (Power of the undertakers to contract for lighting buildings streets &c.) shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section;

(b) Section 35 (If profits are more than the amount prescribed rateable reduction to be made in the price of gas) shall be read as though the words from “in case the whole” to “have been paid” all inclusive had been omitted therefrom and as though the expression “the prescribed rate” included the prescribed rates as defined by this Act together with any sum which under the provisions of this Act might lawfully be carried to the special purposes fund.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. And unless the subject or context otherwise requires—

“The Company” means the Herne Bay Gas and Coke Company Limited;

“The Order of 1899” means the Herne Bay Gas Order 1899;

“The Order of 1903” means the Herne Bay Gas Order 1903;

“The recited Orders” means the Order of 1899 and the Order of 1903;

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“The prescribed rates” means the rates of dividend authorised by this Act on the capital of the Company or such rates as increased or reduced in accordance with the provisions of this Act;

“The council” means the Herne Bay Urban District Council.

CAPITAL &c.

Additional
capital.

4. The limitation prescribed by the recited Orders with respect to the share capital of the Company for the purposes of their undertaking shall not prevent the Company from raising for such purposes further share capital not exceeding ten thousand pounds Provided that—

(1) The share capital of the Company for the purposes of the undertaking authorised by the recited Orders and this Act shall not exceed in the whole the sum of seventy-nine thousand pounds unless the Company are hereafter authorised to raise further capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament :

(2) It shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of ten thousand pounds or to raise by the issue of preference shares any greater amount of the capital authorised by this Act than five thousand pounds.

Limit of
dividend on
capital.

5.—(1) Sections 15 (Limits of dividend on capital) and 16 (Dividends on different classes of ordinary shares to be paid proportionately) of the Order of 1899 and sections 14 (Limits of dividend on new capital) and 15 (Dividends on different classes of ordinary shares to be paid proportionately) of the Order of 1903 are hereby repealed.

(2) Except as by this Act expressly provided the Company shall not in any year declare out of their profits any larger dividends on their capital than at the following rates (in this Act referred to as “the standard rates of dividend”) namely :—

Ten pounds in respect of every one hundred pounds of the original capital :

Seven pounds in respect of every one hundred pounds of the additional capital issued under the provisions of the Order of 1899: A.D. 1912.

Seven pounds in respect of every one hundred pounds actually paid up of so much of the capital issued under the provisions of the Order of 1903 or of this Act as may be issued as ordinary capital:

Five pounds in respect of every one hundred pounds actually paid up of so much of the capital issued under the provisions of the Order of 1903 or of this Act as may be issued as preference capital.

(3) The provisions of this section shall come into operation as from the thirty-first day of December nineteen hundred and twelve.

6. In case in any year or in any half-year (if the Company declare a dividend half-yearly) the net revenue of the Company applicable to dividend is insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividends payable on each class.

Dividends on different classes of ordinary shares or stock to be paid proportionately.

7.—(1) All shares or stock forming part of the capital which the Company may raise under the provisions of this Act shall be issued in accordance with the provisions of this section.

New shares or stock to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of every district council any part of whose district is within the limits of supply of the Company and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the receipt of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits of supply:

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-

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four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum :
- (e) In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (f) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in manner prescribed by a resolution passed by the directors of the Company and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the said directors may think fit or to one or more of those classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold may be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or

stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock. A.D. 1912.

8. Notwithstanding anything contained in the recited Orders the Company may borrow money on mortgage upon the security of their undertaking but the total amount of moneys so borrowed shall not at any time exceed in the whole one-third of the total amount of the share capital of the Company at the time actually raised by the issue of shares or stock including any premium obtained on the sale of any shares or stock under the provisions of the recited Orders or of this Act. Limit of borrowing powers.

9.—(1) The provisions contained in section 17 (Limiting borrowing powers) of the Order of 1899 and in section 16 (Limiting borrowing powers) of the Order of 1903 limiting the rate of interest which may be paid by the Company on money borrowed under those Orders respectively are hereby repealed. Limit of interest on borrowed money.

(2) No higher rate of interest than five pounds per centum per annum shall be paid by the Company without the consent of the Board of Trade in respect of any money borrowed by the Company under the provisions of the recited Orders or of this Act and secured by mortgage of their undertaking.

10. All money raised under this Act including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Act by way of premium shall not be considered as part of the capital of the Company entitled to dividend but all such sums shall be considered as part of the paid-up capital of the Company for the purpose of determining their powers to raise money by borrowing or the amount which they may carry to the special purposes fund. Application of money.

11.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund." Special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated

A.D. 1912. — accountant being the auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The money forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

Application
of excess of
profits over
authorised
rates of
dividend.

12. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the prescribed rates on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year. Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend on the preference capital and one year's dividend at the prescribed rates on the ordinary capital.

Reserve
fund.

13. The Company may in any year set apart out of their divisible profits such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in securities in which trustees are authorised by law to invest and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may

accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the prescribed rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

PRICE OF GAS.

14.—(1) Section 26 (Price of gas) of the Order of 1899 shall be repealed as from the thirty-first day of December nineteen hundred and twelve and as from that date the standard price to be charged by the Company for gas supplied by them shall be three shillings and sixpence per thousand cubic feet and so in proportion for any less quantity supplied.

Price of gas
with sliding
scale as to
dividend.

(2) Provided that the Company may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows:—

(a) In respect of any half-year during any part of which the price charged by the Company shall have been one penny or part of a penny above the price of three shillings and eightpence per thousand cubic feet the dividend payable by the Company shall in respect of each penny or part of a penny by which the price charged by them shall have exceeded such price of three shillings and eightpence be reduced below the standard rates of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and one shilling and ninepence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

(b) In respect of any half-year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect

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of each penny by which the standard price has been reduced be increased above the standard rates of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and one shilling and ninepence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

(3) Provided also that if in any half-year the dividends payable shall comprise a fractional amount less than one quarter per centum the directors of the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with such succeeding dividends accordingly or add the same to the reserve fund.

(4) The Company shall not be entitled to pay any sums for the purpose of making up any previous dividend paid or payable before the said thirty-first day of December which shall have fallen short of the rates of dividend authorised by the recited Orders.

LANDS AND WORKS.

Power to
construct
additional
gasworks.

15. Notwithstanding anything contained in the Order of 1899 the Company may purchase or take on lease (by agreement but not otherwise) and may hold the lands described in the First Schedule to this Act and may upon those lands erect construct lay down provide maintain alter improve enlarge extend and renew or discontinue additional or other gasworks and works for the manufacture and storage of gas and for the manufacture conversion utilisation storage and distribution of materials used in or residual products resulting from such manufacture and the Company may also from time to time provide lay down maintain alter improve enlarge extend and renew all necessary retorts gasholders receivers drains sewers mains pipes meters machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas under the recited Orders and this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in lime coke chemicals tar pitch asphaltum ammoniacal liquor and all other

products or residuum of any materials employed in or resulting from the manufacture of gas. A.D. 1912.

16. The Company (notwithstanding anything in any Act or Order relating to their undertaking) shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products but nothing contained in this section shall restrict the powers of the Company in relation to the construction maintenance or repair of their gasworks buildings plant mains and pipes or the provision of gas meters engines stoves ranges tubes pipes fittings and apparatus or the purchase or use of materials in connection therewith. As to purchase of materials.

17. The agreement made the seventeenth day of February nineteen hundred and twelve between the Company of the one part and the council of the other part set forth in the Second Schedule to this Act is hereby confirmed and made binding on the parties thereto. Confirmation of agreement with District Council.

18. Not later than five years after the date upon which the Company commence to make gas at and to supply gas from the works erected by them upon the lands described in the First Schedule to this Act they shall discontinue the making of gas at the works upon the lands described in Schedule A to the Order of 1899. Discontinuance of existing gas-works.

19. The Company may erect and maintain dwelling-houses for persons in their employment upon any lands for the time being belonging or leased to the Company. Dwelling-houses for persons in Company's employment.

MISCELLANEOUS.

20.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the testing place which has been provided by the Company on the lands described in Schedule A to the Order of 1899 and that testing place which is in this section called “the existing testing place” shall be in lieu of the testing place which was required by section 28 (Testing gas) of the Order of 1899. Testing gas.

(2) (a) Provided that the Company shall within six months of receiving notice from the council requiring them so to do provide and erect a testing place (including a building to contain the same) on any site provided by and at the expense of the council and named in

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such notice within three hundred yards of the Company's works existing at the passing of this Act and upon the completion of the testing place as required by this subsection such testing place shall be the prescribed testing place in substitution for the existing testing place :

(b) Should the Company make default in compliance with a notice duly given under this subsection they shall be deemed to have failed to provide a testing place :

(c) The council shall not give notice under this subsection if at their request in writing the Company shall have previously made and shall maintain an entrance from King's Street to the existing testing place for the use of the council's gas examiner.

(3) The Company shall provide at the prescribed testing place and from time to time maintain and keep in proper order and repair all the apparatus required for testing the quality of the gas supplied by them in accordance with the enactments relating thereto.

(4) The gas examiner appointed by the council shall be entitled to access from time to time to the prescribed testing place for the purpose of testing the quality of the gas in accordance with the said enactments and for the purpose of testing the pressure at which gas is supplied.

Power to
supply gas
fittings.

21.—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (all of which are in this Act called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be.

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(3) All fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) The Company shall only be entitled to the privileges and exemptions conferred by subsections (2) and (3) of this section in respect of such of the said fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

22. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 (Power to remove meter and fittings) of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power
to enter
premises
and remove
fittings.

23.—(1) The Company may by notice in writing require a consumer of gas supplied by the Company and used for the working of an engine to fix and use an anti-fluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an anti-fluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair.

Anti-
fluctuators
to be used
with gas-
engines.

(2) If the consumer after any such notice as aforesaid fails to fix and use an anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Company may cease to supply him with gas.

(3) The Company may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Company and for the

A.D. 1912. purpose of ascertaining whether the anti-fluctuator is in proper order or repair may take off remove test and inspect the anti-fluctuator such taking off removing testing and inspecting to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

(4) For the purposes of this section an "anti-fluctuator" means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Power to
lay pipes
in private
streets.

24.—(1) The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if the street were a street within the meaning of those Acts:

(2) Provided that no pipe shall be laid in any street or road in the urban district of Herne Bay under the powers of this section at a less depth than three feet from the surface of such street or road except with the previous consent in writing of the council.

Power to
lay down
pipes for
ancillary
purposes.

25.—(1) The Company may lay down repair take up alter relay and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their business.

(2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are respectively applicable shall extend and apply mutatis mutandis to and for the purposes of this section.

Gas con-
sumers to
give notice
to Company
before re-
moving.

26.—(1) At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the

register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. A.D. 1912.

(2) Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

27. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company. Notice to discontinue supply of gas.

28.—(1) The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the Company's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond their limits of supply. Company may contract for supply in bulk.

(2) Section 22 (Undertakers may contract with local authority for supply of gas in bulk) of the Order of 1899 is hereby repealed.

29. Proceedings for the recovery of any demand made under the authority of the recited Orders or of this Act or of any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

30. The following provisions for the protection and benefit of the council shall except so far as may be otherwise agreed between the council and the Company apply and have effect (that is to say):— For protection of council.

- (1) If under the provisions contained in the section of this Act of which the marginal note is "Price of gas with sliding scale as to dividend" the Company shall increase or reduce the price charged by them for gas supplied to private consumers an increase or reduction as the case may be shall notwithstanding

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the existence of any agreement between the Company and the council relating to public lighting be made in the price charged by the Company for gas supplied for the lighting of public lamps corresponding with the amount of the increase or reduction in the price charged for gas supplied to private consumers and any question which may arise between the Company and the council with reference to the amount of such increase or reduction in the price to be charged for gas supplied for the lighting of public lamps shall be determined by arbitration in manner hereinafter provided:

- (2) The Company shall not exercise the powers of the section of this Act whereof the marginal note is "Power to lay down pipes for ancillary purposes" in the district of the council except with their consent in writing which consent shall not be unreasonably withheld:
- (3) During the period of five years from the date of the passing of this Act the Company shall not erect a gasholder upon the lands described in the First Schedule to this Act nor shall they erect a gasholder upon such lands during the next following period of five years except with the consent in writing of the council:
- (4) Any question or dispute which may arise between the council and the Company under this section shall be referred to arbitration the arbitrator unless otherwise agreed being appointed by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Costs of
Act.

31. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1912

THE FIRST SCHEDULE.

GAS LANDS.

A piece or parcel of land situate in the parish and urban district of Herne Bay and being plots 58 59 60 61 62 63 and part of plot 57 on the $\frac{1}{2500}$ Ordnance Survey map (Kent sheet XXIII. 12 third edition 1907) containing ten acres one rood and four perches or thereabouts and bounded on the north by Sea Street on the south by the South Eastern and Chatham Railway (Kent Coast line) on the east by land belonging or reputed to belong to the executors of Samuel Thomas Morris deceased and on the west by plots 64 66 and 70 on the said Ordnance Survey map.

THE SECOND SCHEDULE.

AGREEMENT WITH HERNE BAY URBAN DISTRICT COUNCIL.

AN AGREEMENT made the seventeenth day of February one thousand nine hundred and twelve between the HERNE BAY GAS AND COKE COMPANY LIMITED whose registered office is situate at 90 Cannon Street in the city of London (hereinafter called "the Company") of the one part and the HERNE BAY URBAN DISTRICT COUNCIL (hereinafter called "the council") of the other part.

WHEREAS the Company are promoting a Bill in Parliament entitled "A Bill to confer further powers upon the Herne Bay Gas and Coke Company Limited and for other purposes":

And whereas the council have duly passed a resolution to oppose the said Bill:

And whereas in order to avoid the cost and expense which would have been incurred in consequence of such opposition to the Bill before a Parliamentary Committee it has been agreed by and between the parties hereto as hereinafter appears:

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Now it is hereby agreed by and between the parties hereto as follows (that is to say):—

1. Within one year after the said Bill shall have received the Royal Assent or after they shall have acquired the fee simple of the land described in the schedule to the Bill (whichever event shall be the later) the Company will at the request of the council throw into the highway known as Sea Street and dedicate to the public as part of that highway the strip of land coloured pink on the plan annexed hereto being part of the land referred to in the said schedule subject to the following conditions:—

(a) That the council shall have previously or shall at the same time throw into the said highway and dedicate to the public the piece of land situate between the said strip and the existing highway; and

(b) That the Company shall not be required to execute any works of or to pay any part of the expense of sewerage levelling paving metalling flagging channelling making good or providing means of lighting the said street or of the proposed widening thereof or of any part or parts thereof.

2. Until the work of widening the said Sea Street shall be fully completed and open to the public the Company shall have full right and liberty for themselves their servants workmen and others with their permission at all times by day or by night and for all purposes with or without horses carts carriages traction engines motor cars or other vehicles laden or unladen to go pass or repass along over and upon any part or parts of the said strip of land coloured pink on the said plan and the said piece of land situate between that strip and Sea Street in order to obtain access to and from Sea Street from and to the land described in the schedule to the said Bill and also to lay down maintain and use gas and other mains pipes and works across the said strip and piece of land.

3. The Company will not erect any buildings above ground (other than boundary walls) on the land referred to in the schedule to the said Bill nearer to Sea Street than is shown by the line marked "Suggested line of frontage" on the said plan and further will before commencing to erect such buildings send to the council copies of the plans of the buildings they propose to erect.

4. That the Company shall when and so soon as their new works are in use discontinue the use of the slipway now used by them for landing coal if proper and adequate facilities are and continue to be afforded to them for the landing and shipping without payment of coal and other materials at a slipway or jetty at Hampton and for conveying coal and other materials to and from such last-mentioned slipway or jetty from and to their new works such facilities being not

less favourable to the Company than those enjoyed by them in connection with the slipway now used by them and to include the use of the road known as Hampton Pier Avenue such road being placed and kept in a proper state of repair by the council.

A.D. 1912.

5. The council shall not oppose the said Bill before Parliament unless it shall be necessary for the purpose of securing the amendments that have been provisionally agreed between the parties hereto or for the purpose of resisting further amendments which may be proposed prejudicial to the interests of the council.

In witness whereof the parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

The seal of the Herne Bay Gas and Coke }
Company Limited was hereunto affixed in }
the presence of—



HENRY WOODALL }
P. A. NEWTON } Directors.
WM. CASH Secretary.

The common seal of the Herne Bay Urban }
District Council was hereunto affixed in }
the presence of—



ARCHIBALD G. IGGULDEN
Chairman.

GEO. H. BEETENSON
Clerk to the Council.

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